



FORMAL FOLLOW-UP & 72-HOUR NOTICE OF ESCALATION – Medscheme Holdings Integrated Inspection | Unresolved UIF & Certificate of Service | SAPS Criminal Case Opened Today | Sr. WW Matthee

1 message

Wilbur William Matthee <info@ethichawks.co.za> Mon, 23 Feb 2026 at 15:06
To: Fezeka.Ngalo@labour.gov.za, Buziswa.Ngqweleka@labour.gov.za, Bongiwe.Binase@labour.gov.za, Hlanganisa.Dalasile@labour.gov.za
Cc: David.Esau@labour.gov.za, uifcomplaints@labour.gov.za
Bcc: wilburmat@gmail.com

Dear Ms Ngalo, Ms Ngqweleka, Ms Binase, and Mr Dalasile,

I write in formal follow-up to the integrated inspection allocated by Ms Ngalo on 16 February 2026, pertaining to my complaint against Medscheme Holdings (Pty) Ltd / AfroCentric Health (JSE: ACT), The Boulevard Office Park, Cnr Pontaq and Searle Street, Woodstock, Cape Town, 7530.

I acknowledge and appreciate that Ms Ngalo acted promptly on 16 February 2026 by allocating this matter for integrated inspection. However, as of today, 23 February 2026 – seven days since allocation – I have received no case reference number, no confirmation of the assigned inspector, and no status update on the inspection.

MATTERS REMAINING UNRESOLVED:

1. UIF DECLARATION GAP – JUNE 2025
The employer's declaration for June 2025 continues to reflect "No Information" on uifiling.labour.gov.za. My payslip for that month confirms that UIF contributions were deducted from my salary. The failure to declare and remit those contributions constitutes a violation of the Unemployment Insurance Contributions Act 4 of 2002. This directly prejudices my UIF claim and causes me ongoing material harm. UiF Online declarations for June 2025 'no information' screenshot attached.
2. CERTIFICATE OF SERVICE – MISREPRESENTATION
The employer has refused to issue a corrected Certificate of Service reflecting my accurate employment role and details. The version issued has been aligned to the employer's litigation pleadings (Opposing Affidavit dated 10 December 2025, Case WECT23564-25) rather than HR records. This constitutes misrepresentation in a statutory document required under the Basic Conditions of Employment Act.

NOTICE OF CRIMINAL CASE OPENED:

I hereby inform the Department that on 23 February 2026, I will opened a criminal case at SAPS against Medscheme Holdings (Pty) Ltd for fraud and/or contravention of the Unemployment Insurance Contributions Act 4 of 2002, arising from the deduction of UIF contributions from my salary in June 2025 without declaration or proper remittance to the Fund. The SAPS case number will be forwarded to the Department upon receipt.

72-HOUR FORMAL DEADLINE:

I hereby afford the Department 72 hours from the date and time of this email to respond by no later than close of business on Wednesday, 26 February 2026, with:

- (a) The case reference number assigned to this complaint;
- (b) The name and contact details of the assigned Labour Inspector; and
- (c) A confirmed inspection date or status update.

NOTICE OF INTENDED FURTHER ESCALATION:

Should the Department fail to respond within 72 hours, I hereby place the Department on formal notice that I intend to:

1. FILE A FORMAL COMPLAINT WITH THE DIRECTOR-GENERAL OF EMPLOYMENT AND LABOUR for administrative failure by the Provincial Office to act on an allocated inspection within a reasonable timeframe, in circumstances where the complainant has clearly documented ongoing statutory violations and is a person experiencing imminent homelessness and financial destitution as a direct consequence of the employer's non-compliance.
2. REFER THE MATTER TO THE PUBLIC PROTECTOR for investigation of administrative failure and unreasonable delay by the Department of Employment and Labour in acting on a formally lodged and allocated complaint.

I wish to be clear that this notice of escalation is not directed at Ms Ngalo personally, whose prompt allocation of the inspection on 16 February 2026 is acknowledged and appreciated. This notice is directed at the process and the institutional failure to follow through on that allocation.

I remain fully available to provide any further documentation and to cooperate with the inspection process.

Yours faithfully,

Sr. Wilbur William Matthee

SANC No: 1583 1886

RN, BTech (General Nursing, Psychiatry, Midwifery, and Community Health), PG Dip HSM (NQF 8)

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EthicHawks Consulting

23 February 2026



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